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Request for Proposal: SIDAFF 02/2025

Provision of Services for Project Preparation Activities in Overstrand Municipality

RFP No. SIDAFF 02/2025

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Abbreviations

B-BBEE	Broad-Based Black Economic Empowerment
BRVAS	Berg River-Voëlvlei Augmentation Scheme
CAPEX	Capital Expenditure
CIDB	Construction Industry Development Board
DLG	Department of Local Government
ECSA	Engineering Council of South Africa
EIA	Environmental Impact Assessment
GHG	Greenhouse Gas
IDP	Integrated Development Plan
IFC	International Finance Corporation
IFD	Impact Fund Denmark
Ml/d	Mega Litre per Day (also Million Litre per Day)
NPC	Non-Profit Company
NRW	Non-Revenue Water
O&M	Operations and Maintenance
PMU	Project Management Unit
PSP	Professional Service Provider
RFP	Request for Proposal
SDG	Sustainable Development Goals
SECO	Swiss State Secretariat for Economic Affairs
SIDAFF	Sustainable Infrastructure Development and Financial Facility
SLA	Service Level Agreement
WCG	Western Cape Government
WSDP	Water Services Development Plan
WTW	Water Treatment Work/s
WUL	Water Use License

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1. Introduction

The GreenCape Sector Development Agency NPC (GreenCape) has issued this Request for Proposal (RFP) in connection with the Sustainable Infrastructure Development and Financial Facility (SIDAFF) Programme for a Professional Service Provider (PSP) to provide project preparation services for infrastructure development in Overstrand Municipality.

1.1. GreenCape Sector Development Agency

Established in 2010, GreenCape is a non-profit organisation that drives the widespread adoption of economically viable green economy solutions in South Africa. GreenCape works with businesses, investors, academia, and government to unlock the investment and employment potential of green technologies and services, and to support a transition to a resilient green economy. Our aim is to be globally relevant in driving the uptake of green economy infrastructure solutions in the developing world.

1.2. SIDAFF Programme

The Sustainable Infrastructure Development and Financial Facility (SIDAFF) Programme is an initiative by the Western Cape Government (WCG) that **assists intermediate municipalities to develop and finance catalytic and sustainable infrastructure projects**. The objective of the SIDAFF Programme is to support intermediate municipalities in accessing funds for project preparation and catalysing financing for project implementation once projects reach bankability - via suitable financing mechanisms, including a pooled financing mechanism.

The SIDAFF Programme is designed to support the implementation of infrastructure projects at a local government level that align with **National development goals**, through the prioritisation of projects that contribute towards the **Sustainable Development Goals (SDGs)**. The Programme is aligned to the **WCG's strategic priorities**. The Department of Local Government (DLG) at the WCG provides governance oversight to the SIDAFF Programme.

The SIDAFF Programme has secured grant funding within the SIDAFF Grant Facility from international donors, thus far from the Swiss State Secretariat for Economic Affairs (SECO) and Impact Fund Denmark (IFD), to support project preparation of select projects within creditworthy municipalities in the Western Cape.

GreenCape is the implementing partner for the SIDAFF Grant Facility, which is part of the SIDAFF Project Management Unit (PMU) functions. The project preparation shall prepare projects sufficiently for private sector investment or co-investment, and must be completed according to internationally acceptable standards, namely the International Finance Corporation's (IFC) Performance Standards for Environmental and Social Sustainability as applicable (see reference documents: https://www.ifc.org/en/insights-reports/2012/ifc-performance-standards) and Environmental and Social Standards (ESS) (see reference documents: https://projects.worldbank.org/en/projects-operations/environmental-and-social-framework/brief/environmental-and-social-standards) in addition to complying with all local South African laws and regulations.

Bidders need to demonstrate:

1) Advanced understanding of technical considerations and feasibility for the projects being supported, and integrating a thorough economic and financial case for the projects (financial feasibility) according to the standards specified, and in particular trade-offs between technical / technology options, financial viability and non-financial impacts. Financial feasibility should include lifecycle cost analysis that considers options to generate revenue from multiple / novel sources to finance the loan / debt portion of the project funding plan (including but not exclusively, tariffs and tariff increases, development charges, tax increment financing, beneficiation revenue streams, deferred capex investment), as well as revenue enhancement / protection (smart metering and billing systems); and should enable the municipality to understand the maximum viable debt threshold on a project level.
2) Thorough understanding of local laws and regulations and international standards for environmental sustainability, including reducing biodiversity impacts and greenhouse gas emissions, and improving resilience of the project, municipality and its citizens against the impacts of climate change.
3) Thorough understanding of assessing positive social impacts of infrastructure projects (including but not limited to, improved service provision, safety, local economic development and job creation), and identifying and developing management plans for any potential adverse social impacts.

2. Scope of Work

2.1. Objectives

The objective of the Project is to prepare two infrastructure projects located at Overstrand Local Municipality for construction with external financing. There are two projects within this scope of works, and bidders should provide a response to both these projects in their proposals.

- **PROJECT A** entails the replacement of pipes in the water distribution system located within Kleinmond, Betty's Bay, Pringle Bay, Rooi-Els and Hermanus.
- **PROJECT B** is the extension of the sewer network in Hermanus, Hawston and Fisherhaven.

2.2. Municipal overview

Overstrand Municipality is located along the south-western coastline of the Overberg District Municipal area, bordering the City of Cape Town in the west and Cape Agulhas Municipality in the east. Its northern neighbour is Theewaterskloof Municipality. The Municipality covers a land area of approximately 1,708 km^2, with a population of 132,495 in 2022 (Statistics South Africa Census 2022) and covers the areas of Hangklip-Kleinmond, Greater Hermanus, Stanford and Greater Gansbaai. Tourism is a major economic driver in the area, and its popularity as a holiday destination results in a fourfold increase in its population over the holiday seasons. This influx, coupled with the rapid population growth, places a great strain on the existing municipal services.

There is a need for capacity increase in the municipality's reticulation water pipes to provide services for future developments within the municipality. Furthermore, many areas, especially smaller towns and informal settlements, are still using septic tanks due to a lack of formal sewer networks.

2.3. Scope of services required

The municipality manages approximately 860 km of bulk and reticulation water pipelines, the majority of which are asbestos cement pipes that have reached the end of their service life. Pipe failures are on the increase, with the ageing asbestos pipes reaching end-of-life. These deteriorating pipelines are prone to frequent failures, resulting in escalating water losses, rising maintenance costs, service interruptions, and increased pressure on the municipality's ability to provide sustainable water services to its communities.

In response, the municipality has identified an urgent need for a systematic pipe replacement programme over the next three years, transitioning from asbestos pipes to more durable High-Density Polyethene (HDPE) pipes. However, technical guidance is required to prioritise the most critical areas for intervention, ensuring the most efficient use of limited resources and maximising impact in reducing water losses.

Additionally, the municipality is planning to extend its sewer network where conservancy and septic tanks are currently in use. At present, the conservancy and septic tanks in use are emptied by tanker trucks. On average 4,200 tanks of sewerage are collected per month, increasing to 6,500 tanks per month during the peak season. The Sewer Masterplan of 2021 for Overstrand Municipality provides details on the areas that still need to be reticulated with sewer networks.

GreenCape is looking to appoint a PSP to support Overstrand Local Municipality in preparing two priority infrastructure projects (Project A and B below) from Stage 1-Initiation/Pre-feasibility to Stage 4-Documentation and Procurement. This includes a full range of project preparation activities such as technical assessments, financial and economic analysis, legal and institutional reviews, and environmental and social due diligence. The aim is to ensure that the projects are feasible, well-structured, and compliant with regulatory and funding requirements, thereby enabling them to attract investment and proceed to implementation.

PROJECT A: Water Reticulation Pipeline Replacement

Estimated total cost of works R135 000 000

This project entails the replacement of the reticulation pipelines in the water distribution system with a focus on Kleinmond, Betty's Bay, Pringle Bay, Rooi-Els and Hermanus. The consultancy will be expected to take into account the record and locality of pipe failures and expected pipe failures as well as priority areas identified in the water masterplan, and considering the value of the Estimated Cost of Works indicated above, which is what the municipality has planned for this project. Further to that, upsizing of the pipes being replaced should be included where relevant as detailed in the masterplan. Once the priority areas have been identified and agreed within Stage 1, the consultant should focus on those areas for the remainder of the work needed, i.e. Stage 2 onward. The priority will be to replace ageing reticulation water pipes with HDPE pipes by means of trenchless methods where practically possible.

AND

PROJECT B: Sewer Reticulation Extension

Estimated total cost of works R45 000 000

Overstrand Municipality currently uses tanker trucks to empty conservancy and septic tanks in towns not connected to the sewer network. This project entails the extension of the sewer network in Hermanus, Hawston and Fisherhaven as potential priority areas. The priority area/s should be identified and agreed during Stage 1 Inception, and considering the value of the Estimated Cost of Works, indicated above, which is what the municipality has planned for this project. The PSP then should focus on that area for the remainder of the work needed from beginning of Stage 2 onwards. The PSP should take into consideration that new pump stations may be required for this project.

The following documents must be considered (and can be provided):

- Overstrand Municipality Water Master Plan of 2021
- Overstrand Municipality Sewer Master Plan of 2021
- Overstrand Municipality WSDP Performance Audit (2023-24)
- Overstrand Municipality's Minimum Standards for Civil Engineering Services
- Overstrand Water Distribution Pipe Replacement Study 2019
- Overstrand Pipe Burst Data
- WSDP – IDP sector input report (2024-25) or latest
- National Environmental Management Act, 107 of 1998 (NEMA)
- National Water Act, Act 108 of 1997

- ECSA Guideline Professional Fees (Scope of Services and Tariff of Fees for Persons Registered in terms of the Engineering Professions Act, 46 of 2000) – Gazetted 16 May 2025.
- International Finance Corporation's Guidance Notes: Performance Standards on Environmental and Social Sustainability
- World Bank Group: Environmental and Social Standards (ESS)

2.4. Scope of services

The services to be performed in terms of the envisioned professional services agreement shall be as described in the applicable version of the Engineering Council of SA (ECSA) Guideline Scope of Services and Tariff of Fees for Persons Registered in terms of the Engineering Professions Act 46 of 2000. The applicable version of the ECSA Guideline shall be the version applicable five (5) days prior to the date on which tenders close. As stated in the Guideline, where the Guideline is amended and a new version published in the Government Gazette during the currency of this professional services agreement, then the old version(s) of the Guideline shall apply to the stage or stages which were commenced prior to publication of the new Guideline and the new version(s) shall apply to all subsequent stages.

The scope of works will be evaluated in line with the ECSA Guideline Scope of Works and Tariff of Fees specifically pertaining to **Civil Engineering Services**. Details pertaining to work outputs expected for PROJECT A and PROJECT B are listed below. Where relevant, outputs and work required as listed in the table below should be completed in line with the International Finance Corporation's (IFC) Guidance Notes: Performance Standards on Environmental and Social Sustainability and the World Bank Group's Environmental and Social Standards (ESS).

PROJECT A: Replacement of reticulation water distribution system

Table 1: Description of works required for PROJECT A – replacement of the water distribution system.

Project stage	Deliverables	Description of work required
Stage 1: Inception *Refine client requirements and preferences, assess user needs and options, appointment of necessary consultants, finalise the project brief including project objectives, priorities, constraints, assumptions, aspirations and strategies.*	Inception Report	Background of the contract appointment, brief background of the project(s) and the purpose and structure of the report.
		Description of the methodology of the investigation, including reference data collected and reviewed as well as a demand analysis.
		Description of the project locality and study area, as well as key considerations to nearby heritage sites (if any), local communities, biodiversity considerations and whether land resettlement is required.
		Validation of the existing demand and supply projections as detailed in the various documents listed for consideration.
		Description of the current state of the pipelines at Kleinmond, Betty's Bay, Pringle Bay, Rooi Els and Hermanus. This section should also give consideration to the record of pipe bursts in these areas.
	Options Analysis	Option analysis of the replacement of the reticulation pipes accounting for the upsizing required to meet projected future demand. Consider high-level lifecycle costing and design considerations for each option
	Preliminary Environmental and Social Impact Assessment	Identify the potential environmental and social impacts associated with each project option under consideration, distinguishing between standard environmental impacts and any project-specific or location-specific risks; assess the severity and likelihood of negative environmental effects such as pollution, habitat disruption, or resource depletion; evaluate potential social impacts including land acquisition, displacement, cultural heritage concerns, and community health and safety; determine the need for environmental authorisations or permits (e.g. Basic Assessment or full Environmental Impact Assessment); identify feasible mitigation measures and estimate their associated costs; rank project alternatives based on the scale and manageability of their environmental and social risks; flag any factors that could delay implementation or require substantial design changes; highlight opportunities for environmental or social co-benefits such as improved resource efficiency, local employment, or community infrastructure; and ensure alignment with relevant national legislation and regulatory requirements, including the National Environmental Management Act and the Climate Change Act.
	Institutional and Regulatory Assessment	Evaluate institutional capacity, skills and delivery readiness and highlight any potential legal or regulatory constraints.
	Stakeholder and Risk Analysis	Undertake an initial stakeholder mapping and engagement. Identify key project risks and mitigation strategies.
	Technical Feasibility	Preliminary design of the pipeline upgrades. This section should include a hydraulic design of the identified priority pipe sections in Stage 1. Technology and process options (including energy efficiency, NRW reduction and

Project stage	Deliverables	Description of work required
Stage 2a: Concept and Viability (Preliminary Design) *Prepare and finalise the project concept in accordance with the brief, including project scope, scale, character, form and function, plus preliminary programme and viability of the project.*		environmental benefits) with cost implications, financial and non-financial benefits to be considered and compared.
		Detailed risk study following the *International Finance Corporation's Guidance Notes: Performance Standards on Environmental and Social Sustainability* for the most suitable option(s) identified in the Inception Phase for the pipeline upgrade. This section should include a schedule of required surveys and assessments. High-level investigations have indicated that a land survey would be required.
		Details regarding the ability of pump stations supplying these pipelines to meet the projected demand when upsizing is taken into account. Provide recommendations on any additional or new infrastructure requirements as a result of the pipe upgrading and upsizing. i.e. new required pressure reducing valve installations in the network, bulk meters etc.
		Detailed summary of the work required for the replacement of the reticulation water pipes, on a town basis for Kleinmond, Betty's Bay, Pringle Bay, Rooi-Els and Hermanus.
		Full financial feasibility assessment of the most suitable option(s) identified in the Stage 1 and should include an institutional assessment that considers internal capacity and skills required for O&M. Financial feasibility should include lifecycle cost analysis that considers options to generate revenue from multiple / novel sources to finance the loan / debt portion of the project funding plan (including but not exclusively, tariff review and tariff increases, development charges, tax increment financing, beneficiation revenue streams, deferred capex investment), as well as revenue enhancement / protection (smart metering and billing systems); and should enable the municipality to understand the maximum viable debt threshold on a project level. The O&M requirements should be based on best practice (over the asset lifespan) and include recommendations on internal vs external skills / capacity required.
		Cost estimation of construction for the full scope of works at a ±10% level of accuracy range.
		Implementation and procurement plan.
		Impact statement and summary of the conclusions including any recommendations for the municipality and council approvals that would be needed. The impact statement of the project should make mention of the number of indigent households served as well as the NRW reduction to the municipality as a whole, as a % and in ML/D.
Stage 2b: Assessments	Detailed Investigations and Statutory Approvals	Reports and outcomes of the supplementary assessments, studies and investigations, such as the land survey.
Stage 3*: Detailed Design *Develop the approved concept design to finalise the design, outline specifications, cost plan, financial viability and programme for the project.*	Approved Detailed Design	Develop design drawings based on the most feasible option selected in Stage 2, provide a detailed outline of technical specifications, submit drawings and reports to local and other relevant authorities as required, and prepare a detailed estimate of the construction costs. These are also to be aligned with municipality's standards (refer to Overstrand's Minimum Standards for Civil Engineering Services)
Stage 4*: Documentation and Procurement *Prepare procurement and construction documentation, confirm and implement the procurement strategies and procedures*	Tender Documentation	Develop comprehensive tender documentation aligned with municipality's procurement standards and policies, including technical specifications, service coordination details, construction drawings, estimated construction costs, a tender evaluation report, tender recommendations, and priced contract documentation.

Project stage	Deliverables	Description of work required
for effective and timeous procurement of necessary resources for execution of the project.		
***Progression to Stage 3 and Stage 4 will only be confirmed upon completion and evaluation of Stage 1, 2a and 2b. Please refer to the procurement approach outlined in Section 3 for further details**		

PROJECT B: Extension of sewer network in Hermanus, Hawston and Fisherhaven

Table 2: Description of works for PROJECT B – extension of sewer network in Hermanus, Hawston and Fisherhaven.

Project stage	Deliverables	Description of work required
Stage 1: Inception *Refine client requirements and preferences, assess user needs and options, appointment of necessary consultants, finalise the project brief including project objectives, priorities, constraints, assumptions, aspirations and strategies.*	Inception Report	Background of the contract appointment, brief background of the project(s) and the purpose and structure of the report.
		Description of the methodology of the investigation, including reference data collected and reviewed as well as a demand analysis.
		Description of the project locality and study area, as well as key considerations to nearby heritage sites (if any), local communities, biodiversity considerations and whether land resettlement is required, using the IFC's Performance Standards for Environmental and Social Sustainability as a framework to assess these risks.
		Validation of the existing demand and supply projections as detailed in the various documents listed for consideration.
		Description of the sewer network of Overstrand Municipality with specific reference to the status quo in Hermanus, Hawston and Fisherhaven as well as key connecting points such as the capacity of pump stations and wastewater treatment works.
	Options Analysis	Option analysis of proposed area for the extension of the sewer network including areas where new pump stations should be built. Consider high-level lifecycle costing and design considerations for each option.
	Preliminary Environmental and Social Impact Assessment	Identify the potential environmental and social impacts associated with each project option under consideration, distinguishing between standard environmental impacts and any project-specific or location-specific risks; assess the severity and likelihood of negative environmental effects such as pollution, habitat disruption, or resource depletion; evaluate potential social impacts including land acquisition, displacement, cultural heritage concerns, and community health and safety; determine the need for environmental authorisations or permits (e.g. Basic Assessment or full Environmental Impact Assessment); identify feasible mitigation measures and estimate their associated costs; rank project alternatives based on the scale and manageability of their environmental and social risks and benefits; flag any factors that could delay implementation or require substantial design changes; highlight opportunities for environmental or social co-benefits such as reduced greenhouse gas (GHG) emissions, improved resource efficiency, local employment, or community infrastructure; and ensure alignment with relevant national legislation and regulatory requirements, including the National Environmental Management Act and the Climate Change Act.
	Institutional and Regulatory Assessment	Evaluate institutional capacity, skills and delivery readiness and highlight any potential legal or regulatory constraints.
	Stakeholder and Risk Analysis	Undertake an initial stakeholder mapping and engagement. Identify key project risks and mitigation strategies.
Stage 2: Concept and Viability (Preliminary Design) *Prepare and finalise the project concept in accordance with the brief, including project scope, scale, character, form and function, plus preliminary*	Technical Feasibility Report	Preliminary design of the extension of the sewer network. This section should include a hydraulic design of the pipes as well as the pump stations identified (should this be a requirement). Technology and process options (including energy efficiency and environmental benefits) with cost implications to be considered and compared.
		Detailed risk study following the International Finance Corporation's Guidance Notes: Performance Standards on Environmental and Social Sustainability for the most suitable option(s) identified in the Stage 1 for the pipeline upgrade. This section should include a schedule of required surveys and assessments.

Project stage	Deliverables	Description of work required
programme and viability of the project.		High-level investigations have indicated that an environmental baseline, a geotechnical study, and a land survey would be required.
		Detailed summary of the work required for the sewer network extension and potential pump station(s).
		Full financial feasibility assessment of the most suitable option(s) identified in the Stage 1 and should include an institutional assessment that considers internal capacity and skills required for O&M. Financial feasibility should include lifecycle cost analysis that considers options to generate revenue from multiple / novel sources to finance the loan / debt portion of the project funding plan (including but not exclusively, tariff review and tariff increases, development charges, tax increment financing, beneficiation revenue streams, deferred capex investment), as well as revenue enhancement / protection (smart metering and billing systems); and should enable the municipality to understand the maximum viable debt threshold on a project level. The O&M requirements should be based on best practice (over the asset lifespan) and include recommendations on internal vs external skills / capacity required.
		Cost estimation of construction for the full scope of works at a ±10% level of accuracy range.
		Implementation and procurement plan.
		Impact statement and summary of the conclusions, including any recommendations for the municipality and council approvals that would be needed. The impact statement of the project should make mention of the number of indigent households served as well as the greenhouse gas emissions (GHG) reductions resulting from not using the tanker trucks.
Stage 2b: Assessments	Detailed Investigations and Statutory Approvals	Reports and outcomes of the supplementary assessments, studies and investigations. High-level investigations have indicated that an environmental baseline, a geotechnical study, and a land survey would be required.
Stage 3*: Detailed Design *Develop the approved concept design to finalise the design, outline specifications, cost plan, financial viability and programme for the project.*	Approved Detailed Design	Develop design drawings based on the most feasible option selected in Stage 2, provide a detailed outline of technical specifications, submit drawings and reports to local and other relevant authorities as required, and prepare a detailed estimate of the construction costs.
Stage 4*: Documentation and Procurement *Prepare procurement and construction documentation, confirm and implement the procurement strategies and procedures for effective and timeous procurement of necessary resources for execution of the project.*	Tender Documentation	Develop comprehensive tender documentation, including technical specifications, service coordination details, construction drawings, estimated construction costs, a tender evaluation report, tender recommendations, and priced contract documentation.
***Progression to Stage 3 and Stage 4 will only be confirmed upon completion and evaluation of Stage 1, 2a and 2b. Please refer to the procurement approach outlined in Section 3 for further details**		

2.5. Project Management

The project management for these projects will be the responsibility of the appointed PSP under the supervision of GreenCape. This will involve various meetings, arranging of stakeholder engagements, quality assurance and knowledge transfer.

2.5.1. Project Meetings

The coordination, arrangement and cost of the meetings in Table 3 are the responsibility of the PSP. For relevance and cost estimation purposes, the indicative project meeting expectations are provided below.

Table 3: Project Meetings

Meeting Type	Number of Meetings	PSP Obligations
Meeting with (local) Authorities (Municipal officials)	~8	▪ Meeting arrangements ▪ Attendance ▪ Minute taking and distribution
Progress Meetings (GreenCape & PSP)	Monthly	▪ Attendance ▪ Minute taking and distribution ▪ PowerPoint presentation of progress
Project Steering Committee (GreenCape, Municipal officials and PSP; DLG optional)	Quarterly	▪ Meeting arrangements ▪ Attendance ▪ Minute taking and distribution ▪ PowerPoint presentation of progress
Meetings with key stakeholders (DWS, DFFE etc)	As required	▪ Meeting arrangements ▪ Attendance ▪ Minute taking and distribution ▪ PowerPoint presentation of progress

3. Procurement Approach

The projects outlined in Section 2 are at an early stage in terms of their project preparation, therefore the procurement approach for this RFP has taken this into account in terms of pricing for the work required:

- ECSA stages 1, 2a and 2b of the project preparation will be costed according to a fixed fee determined upfront, and detailed in the financial proposal. PSP costs related to services in Stages 3 and 4 of the project are to be estimated according to the current estimated total costs of works; using a confirmed discount or mark-up rate according to the applicable ECSA fee scale (Civil Engineering Services), as per the diagram below.
- When Stages 1, 2a and 2b of the project preparation has been completed, and feasibility established, then the successful tenderer for this project will respond to GreenCape with a final cost for completing the project preparation activities, now utilising the more accurate total costs of works confirmed at the end of Stage 2, with the same discount or mark-up rate as offered in the original financial offer being applicable. The actual fee for Stages 3 and 4 can therefore be updated on the cost of works and percentage discount offered.
- If at the end of Stage 2, the project is deemed to be unfeasible, or there is insufficient grant funding available to complete the preparation activities, in GreenCape's sole discretion, no further amounts will be payable or adjustments will be allowed and the contract will terminate.
- GreenCape thus reserves the right to cancel the future components of the contract after Stage 2, should it not be feasible to continue with the project.

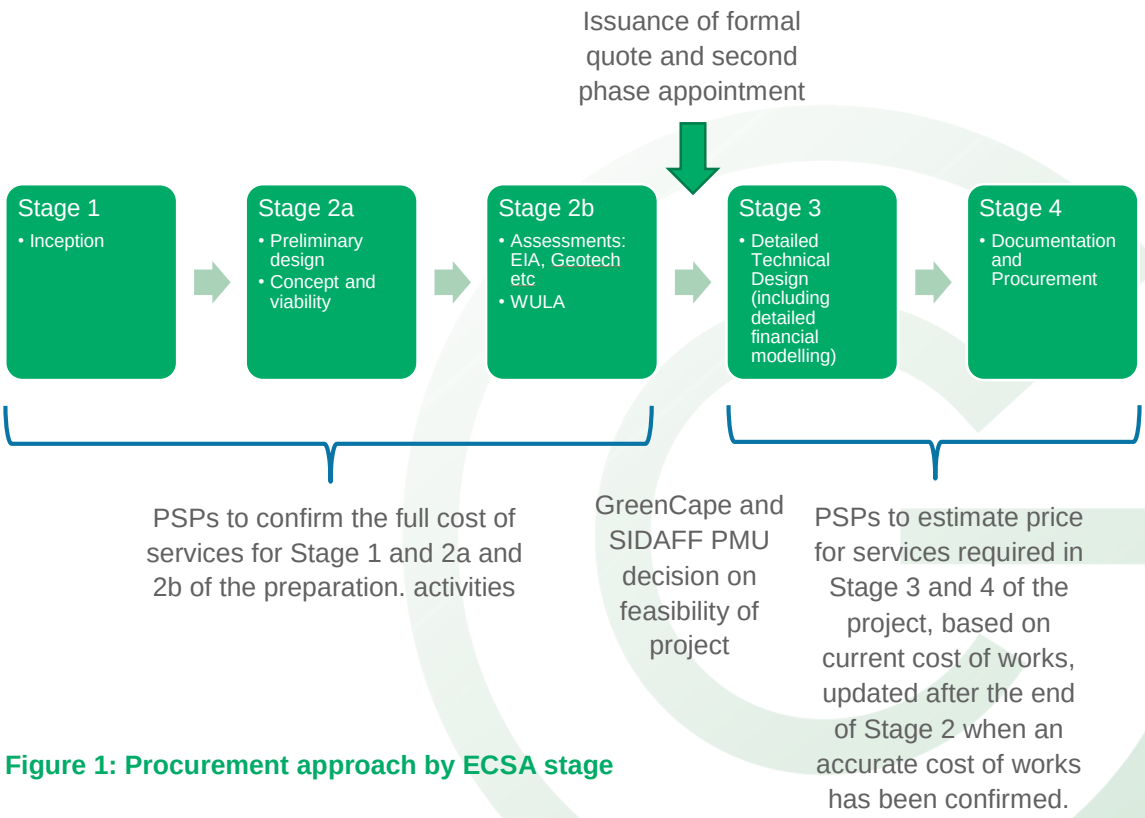

Figure 1: Procurement approach by ECSA stage

The tenderer must therefore provide a full financial proposal for Stages 1, 2 and 2b (as outlined above) and described in section 7.4 and the estimated price for Stage 3 and Stage 4 of the project, based on the current estimated total cost of works. The project team for all Stages of the project must be detailed.

4. Tender Process

4.1. Overview of Request for Proposal (RFP)

GreenCape will publish an open invitation to submit a proposal (referred to in this RFP as a "tender") and distribute this invitation via direct channels and on our website

Tenderers must complete and submit the tender documents in **Annexure A.** Each tender must include a technical proposal and a financial proposal and must comply with the Tender Conditions in section 10 (Tender Conditions).

Subject to its right to cancel the tender (see section 10.2 – GreenCape's discretion), GreenCape will evaluate each qualifying tender in accordance with the procedure and criteria set out in section 7 (Tender Evaluation) and enter into a contract with the highest scoring Tenderer.

4.2. Tender programme

The tender programme, is as follows:

- Request for proposals published: 22 August 2025
- Compulsory information session: 14:00 – 15:30, 3 September 2025
- Tender submission deadline: 19 September 2025
- Target date for all proposals adjudicated and winner notified: 20 October 2025

After contracting, the work in terms of the RFP is expected to commence in November 2025.

4.3. Compulsory information session

Two weeks after the RFP has been published, an online information session will be held with GreenCape. Please RSVP to this event using this link: https://greencape.co.za/request-for-proposals-provision-of-services-for-project-preparation-activities-in-overstrand-municipality/. All questions received during the session, and their subsequent responses will be distributed to all interested parties after the session. The information session is compulsory, and a lack of attendance will result in disqualification from the tender.

4.4. Clarification and amendment of RFP and contact with GreenCape

Each prospective tenderer is responsible for checking the page numbers of this RFP to satisfy themselves that none are missing or duplicated. GreenCape does not accept any liability arising from the fact that a prospective Tenderer may not have received the complete RFP.

At any time before the submission of the tenders, GreenCape may, for any reason, whether at its own initiative or in response to a clarification, amend the RFP. Any amendment made will be published on the same forums as the RFP.

Any enquiry or request for clarification regarding this RFP should be emailed to GreenCape at SIDAFF@green-cape.co.za with the subject line: “RFP SIDAFF 02/2025” at least seven (7)

calendar days before the set deadline for the submission of tenders. GreenCape will respond by e-mail within 4 calendar days from the date of request. All questions and their responses will be sent to all participants from the compulsory information session.

Any other contact with GreenCape personnel involved in this tender is not permitted during the RFP process other than as required through existing service arrangements or as requested by GreenCape as part of the RFP process.

All Tenderers will be held to the GreenCape anti-fraud, anti-corruption, anti-bribery, anti-terrorism funding policy and related legislation according to the funders' requirements, including those in terms of Swiss and Danish law relating to Bribery and Corruption.

4.5. Costs of tendering

Tenderers are responsible for fully acquainting themselves with the conditions, requirements and specifications of this RFP before submitting tenders.

Each Tenderer assumes all risks for resource commitment and expenses, direct or indirect, of tender preparation and participation throughout the RFP process. GreenCape shall not be liable, directly or indirectly for any costs incurred by Tenderers what so ever.

5. Submission of Tenders

5.1. Submission instructions for full proposals

Tenders must be submitted by no later than 23h59 on 19 September 2025. GreenCape will not consider tenders submitted thereafter.

Each tender must comply with the Tender Conditions in section 10 (Tender Conditions).

Tenders must be submitted electronically via email to *SIDAFF@green-cape.co.za* with "RFP SIDAFF 02/2025" in the subject line.

The technical and financial proposals must be sent in separate emails which are indicated in the subject line whether the attached documents form part of the technical proposal or the financial proposal (e.g. Bidder A: Technical Proposal, Bidder A: Financial Proposal). The compliance documents should be included in the technical proposal email. The financial costing tables should be supplied in Excel and PDF, whilst the rest of the documents should be supplied as PDFs.

If the Tenderers are unable to submit the tender via email, then an electronic copy (USB memory key) can also be submitted at GreenCape's offices at 2nd Floor, Aria North Wharf, 42 Hans Strijdom Avenue, Foreshore, Cape Town. **Tenders in hardcopy will not be accepted.**

If a courier service company is being used for delivery of the tender, the RFP description must be endorsed on the delivery note/courier packaging to ensure that the tender is delivered to the correct person, by the stipulated due time and date.

Tenders submitted by companies or other legal entities must be signed by a person or persons duly authorised to sign on behalf of that legal entity.

Tenders submitted by more than one entity jointly (joint ventures, associations or the like) should be signed by each member thereof duly authorised thereto, not only one of them.

6. Tender Documents

6.1. General requirements

Each tender must include all the documents in **Annexure A**, and must be separated into two proposals: a technical proposal and a financial proposal, with the supplementary documents included as annexures. The general supplementary documents not relevant for the technical or financial proposal, to be included with the technical proposal email, are:

(a) original or certified copy of the B-BBEE certificate/s

(b) original or certified copy of SARS Tax Clearance Certificate/s

(c) Certified copy of company registration certificates that reflect Company Name, Registration number, date of registration and active Directors or Members

(d) Signed Declaration of Interest

(e) Letter of good standing from the Compensation Fund in South Africa (COIDA)

(f) Proof of required insurances

In the case of a joint venture/association items 6.1 (a) to (f) must be submitted for each member of the joint venture/association.

6.2. Technical proposal

The technical proposal must include:

(a) Company profile(s);

(b) Curricula vitae of key members of project team, and evidence of their qualifications, accreditations and experience

(c) Project experience; including an indication of all relevant consultancy services provided to an organ of state over the last five years (if any)

(d) Technical Proposal to the defined Scope of Works, including methodology and a preliminary project plan

(e) An optional sustainability plan as this is required if the ECSA rates are discounted more than 10%

(f) Registration number with the Construction Industry Development Board (CIDB), if so registered

If the proposal is submitted by a joint venture / association or consortium then items 6.2 (a) to (c) and (f) must be submitted in respect of each company that is a member of the joint venture / association / consortium, and the agreement setting out how the work and remuneration will be allocated among the members thereof, must be included.

6.3. Financial proposal

The financial proposal must include:

(a) A complete financial proposal for services related to Stages 1, 2a, and 2b (as per Figure 1) for Project A and Project B, according to ECSA's Guideline on Professional Fees

(b) A cost estimate for services related to Stages 3 and 4, (as defined in Figure 1) for Project A and Project B, based on current costs of works for Project A and B.

Subject to the following paragraph, the financial proposal must include costs, prices and rates to do all of the work and deliver all of the services specified in the Scope of Works, neither GreenCape nor its funders being liable for any amounts not contained in the financial proposal.

If this RFP expressly indicates that the tenderer may decide whether or not to quote to perform specific work, and the tenderer decides not to do so, the tenderer must clearly specify its choice in both the technical proposal and the financial proposal.

All costs must be quoted in South African Rand (ZAR) as excluding VAT, VAT at 15%, and the cost inclusive of VAT.

The tenderer is bound by the financial proposal and accepts the risk of any mistakes regarding prices and calculations, to which they will be bound as an offer.

6.3.1. Pricing Instructions

Depending on the category of services to be provided, and if applicable, the fee for services rendered in accordance with the Scope of Work shall be calculated and payable in accordance with the ECSA Guideline Professional Fees (Scope of Services and Tariff of Fees for Persons Registered in terms of the Engineering Professions Act, 46 of 2000), as published and amended from time to time, as pertaining to Civil & Electrical Engineering Projects.

Fees Based on Cost of Works and Time Based Fees:

(a) Shall be calculated and payable in accordance with the Fees for Normal Services within the respective Fee Category of the ECSA Guideline Professional Fees, less the percentage discount offered by the tenderer. **Note:** the maximum available grant funding budget for the services outlined in this RFP has been determined using the ESCA guidelines fee scales. Bidders are advised to consider this in preparing financial proposals.

(b) Additional Services that cannot be determined in accordance with the Fees Based on Cost of Works, such as the costs of specialists, shall be calculated as Time Based Fees.

(c) Printing, reproduction and advertisements and other communication related costs must be included in the total costs.

(d) Expenses and Costs that may be claimed in accordance with the ECSA Guideline Professional Fees are:

a. Services by specialists not included in the scope of work (e.g. surveys, testing, investigations, etc.) but required to be undertaken. These services shall be reimbursable based on actual cost plus an administration fee, and will need to be approved by GreenCape before costs are incurred and after a competitive bidding process has been undertaken to ensure cost-effectiveness.

To mitigate the risk of poor-quality service offerings due to excessive discount offerings, Tenderers MUST submit a sustainability motivation where a Tenderer offers a discount of more than 10% of the prescribed rates/fees. Details of this motivation are included in section 7.3.5

7. Tender Evaluation

7.1. Evaluation process

The evaluation process involves the following steps:

1. Starts with the proposal submissions;

2. Screening to determine whether tender is compliant or must be disqualified; i.e. all required documentation provided and meet the minimum criteria;

3. Technical evaluation of the technical proposal of each qualifying tender to determine whether or not the proposed Tenderer(s) have the technical competence and experience to perform the work specified in the scope of work, with a minimum score of 80% (or 40 out of 50) to progress to the next round

4. Financial evaluation of the financial proposal of each Tender that has been assessed to be sufficiently technically competent, in order to assess value for money; and

5. Final adjudication by an appointed bid adjudication committee which considers the technical evaluation, financial evaluation, B-BBEE status, and additional differentiating factors of each Tender to select a preferred Tenderer.

During the final comparative adjudication, the technical, financial and B-BBEE scores of each tender will be added together, and the tenderers will be ranked according to their total score. The bid adjudication committee will then assess whether there are any other material factors relevant to the tenders, and will perform a high-level risk analysis on publicly available information before awarding the tender to the highest scoring bid, noting that the selection remains fully within GreenCape's discretion.

The evaluation scoring is summarised in the following table:

Table 4: Tender evaluation scoring

Tender component	Maximum points
Technical evaluation	50
Financial evaluation	30
B-BBEE evaluation	20
Total	100

According to GreenCape's Procurement policy, services of this value will be weighted on the basis of 50/30/20 split of functionality/price/B-BEEE. In the case of the above table, the technical evaluation will speak to functionality (50 points); the financial evaluation (30 points) and the B-BBEE evaluation will be 20 points.

The Tender with the highest combined score after the final comparative adjudication may be selected as the preferred Tenderer but the selection remains fully within GreenCape's discretion.

7.2. Pre-evaluation screening

All tenders that are received will be screened to ensure that they comply with the requirements of this RFP and non-compliant bids will be disqualified. For instance, if any of the following documents are not received, the bid will be declared non-compliant: B-BBEE Certificate, Tax Clearance Certificate, Company Registration Certificate, Declaration of Interest and the submission of all required documents. Furthermore, any tenders that are received after the closing date will also be considered non-compliant.

GreenCape will inform any tender whose tender is disqualified of that fact. Disqualification remains fully at GreenCape's discretion however and no appeals shall be allowed.

7.3. Technical evaluation

The technical proposals of all qualifying tenders will be evaluated. If the technical proposal does not achieve a technical evaluation score of 80% or more, the financial proposal will not be evaluated.

7.3.1. Technical evaluation criteria

A summary of the maximum possible scores per category are outlined below. Please note that this score will be converted to the technical evaluation weighting of 50 points as per the scoring outline in Table 4

Table 5: Technical Functionality scoring per category

Functionality category	Maximum points
Key Personnel	30
Tenderer's Experience	30
Technical Approach	20
Sustainability	20
Maximum possible score	100

The key staff members responsible for ensuring that the scope of works is carried out to the requisite standard (including a Project Manager) must be listed together with a description of their proposed role in the Project, their place of residence and whether they will be located in South Africa for the foreseeable duration of the Project, and their *curricula vitae* ("CVs").

The CV's will show the number of years of experience in the sector and specifically, any expertise in bulk water and sewage reticulation pipeline municipal infrastructure projects. The relevant project and function experience is to be pointed out and the Tenderer is to certify the correctness of the contents of these CVs.

7.3.2. Technical evaluation of personnel

The experience of the Tenderer's key personnel to be assigned to the specific project is to be evaluated. The evaluation will include the qualifications, professional registration and the number of years of applicable experience.

Curriculum Vitae (CV's) in the prescribed format in Annexure D and not exceeding three pages for each of the key personnel proposed in Table 6 Key Personnel must be submitted. The CV's must specifically include the qualifications, professional registration, and experience of the person on relevant projects. Certified copies of ECSA registration certificates (where applicable) and ID documents must be attached to the CV's. Please note that no functionality points for Key Personnel will be allocated if certified copies of ECSA registration certificates and/or ID documents are omitted or if CV's of key personnel are not provided in the prescribed format.

Points will be allocated for the Tenderer's key staff and experience as indicated in Table 6. The total score achieved will be prorated in accordance with the weighting of the specific category indicated in Table 5.

Tenderers must note the key personnel proposed herein form part of the proposal and if accepted by GreenCape, may not be changed for the duration of the appointment without written approval from GreenCape. Only the most experienced or senior of the project team should be included in the personnel evaluation table, as only one person per role will be scored.

Table 6: Key Personnel Evaluation

Key Personnel Role	Qualification		Professional Accreditation		Relevant Experience		Project Experience[1]		Points available
	Type	Points	Type	Points	Years	Points	# of Projects	Points	
Project Director[2]	4 yr Eng degree or B.Tech or higher	3	ECSA Pr Eng/ ECSA Pr (Tech) Eng	3	>20	8	5	6	20
					>10	6	3	4	
	3 yr Eng Diploma	1			>5	2	<3	2	
Civil Engineer/Design Engineer	4 yr Eng degree or B.Tech or higher	3	ECSA Pr Eng/ ECSA Pr (Tech) Eng	2	>20	8	5	6	19
					>10	4	3	4	
	3 yr Eng Diploma or Btech	1			>5	2	<3	2	
Project Finance Specialist	4 yr Master's degree	2	n/a		>10	6	3	3	11
	3 yr degree/diploma	1			>5	3	2	2	

[1] Only reference projects that are at the same scale, where the same project role was performed, and the scope of work was similar. These projects are to be listed in Annexure D within the CV.
[2] Project Director must have demonstrated project management experience and certification(s)

Key Personnel Role	Qualification		Professional Accreditation		Relevant Experience		Project Experience[1]		Points available
							1	1	
Legal and contracting specialist	4 yr Masters degree	2	n/a		>10	5	3	3	10
	3 yr degree/diploma	1			>5	3	2	2	
							1	1	
Maximum available									60

7.3.3. Technical evaluation of tenderer's experience

The Tenderer's relevant experience based on the number of projects completed with each category broken down in its high-level disciplines, during the past 10 years will be evaluated and scored. Note the projects will be evaluated on a per project level, and each project can only be allocated to one category, i.e. international/national, regional or local.

Table 7: Evaluation of the tenderer's experience

Project Type	Per project value[3] of completed projects 2015 – 2024 *(international/national)*	Points per project	Maximum points available
Water Reticulation	>R20 million	2	8
	>R10 million	1	
Sewer Reticulation	>R15 million	2	8
	>R8 million	1	
Maximum Available			16
Project Type	**Project value of completed projects in the Overberg[4] 2015 – 2024 *(regional)***	**Points per project**	**Points available**
Water Reticulation	>R20 million	2	4
	>R10 million	1	
Sewer Reticulation	>R10 million	2	4
	>R5 million	1	
Maximum Available			8
Project Type	**Project value of completed projects in the Overstrand Region[5] 2015 – 2024 *(local)***	**Points per project**	**Points available**
Water Reticulation	> R20 million	3	3
	>R10 million	1	
	>R10 million	3	3

[3] Per project construction value, excluding VAT. Project value can be inflated to 2024 values using the average annual inflation rate of South Africa (CPI) for projects completed before 2024.
[4] Overberg region is the service area of the Overberg District Municipality.
[5] Overstrand region is the service area of the Overstrand Municipality.

Sewer Reticulation	>R5 million	1	
Maximum Available			6
Total Maximum Available			30

The tenderer should supply information on project experience using the template supplied in Annexure E and reference letters from relevant projects.

7.3.4. Evaluation of the technical approach

The tenderer must supply a description of how the work will be carried out. This approach proposal should include:

- Methodology
- Resource allocation with details on how personnel will be distributed by activity and what team is required to fulfil the scope of work
- Outline how assessments will be conducted
- Project plan with milestones and timelines
- Critical success factors
- Risk management and controls
- Indications of where additional components relevant to the IFC Performance Standards will be relevant, and the implications on the activities within the scope of work

Points will be allocated according to the table below and prorated in accordance with the weighting of the specific category indicated in Table 5.

Table 8: Technical Approach Scoring

Technical approach assessment		Points
Nil	No technical approach submitted	0
Poor	The technical approach is poor / is unlikely to satisfy the objectives or requirements. No critical aspects of the project are addressed.	8
Satisfactory	The technical approach is generic and not tailored to address the specific project objectives. Only some of the critical aspects of the project are addressed.	12
Good	The technical approach is tailored to address the specific project objectives. Most of the critical aspects of the project are addressed.	16
Excellent	The technical approach is tailored to address the specific project objectives and address all the critical aspects.	20
Total Points Available		20

7.3.5. Evaluation of sustainability of offer

The sustainability of the Tenderer's offer is only evaluated where the discount offered is more than 10%. A full score for sustainability will be allocated to those tenderers that offer a discount of not more that 10%.

The sustainability of the Tenderer's offer is evaluated by observing the percentage (%) discount offered on ECSA tariff rates (Civil Engineering projects), the motivation in respect of sustainability and the Tenderer's track record of successful completed projects with a similar scope at similar discounted rates. The tenderer must provide the information required in Annexure F: Similar projects completed at similar discounted rates and a motivation in respect of sustainability.

Table 9: Sustainability Offer Scoring

Scoring of sustainability offer motivation	Points
The motivation is poor and does not support the sustainability of the discount offered. The tender offer is likely to pose a significant risk to the municipality/GreenCape.	0
The motivation does not sufficiently support the sustainability of the discount offered. The tender offer is likely to pose a moderate risk to the municipality/GreenCape.	10
The motivation supports the sustainability of the discount offered. The tender offer is likely to pose no risk to the municipality/GreenCape.	20
Total Points Available	20

7.4. Financial evaluation

The third step is to evaluate the financial proposals of all tenders that equalled or exceeded the minimum score of 80% in the technical evaluation. Within the financial proposal, the tenderer must specify the price for each of the projects listed (i.e. Project A and B as per Section 2), as well as the price for each ECSA stage (i.e. as per Section 2), and the estimated maximum costs for the indicated assessments, with the below an example of the pricing template:

Table 10: Financial Proposal Pricing breakdown

Scope of works	ECSA	Project A	Project B	Subtotal	% discount / premium on ECSA or specialist fees
Inception	Stage 1				
Concept & Viability with Preliminary Design	Stage 2				
Environmental baseline	Stage 2 assessments	N/A			
Geotechnical	Stage 2 assessments	N/A			
Land surveys	Stage 2 assessments				
Design Development with Detailed Design	Stage 3				
Documentation and Procurement	Stage 4				
Total					

The final financial score will be determined by the following equation:

$$P_S = 30 \times \left(1 - \left(\frac{P_t - P_{min}}{P_{min}}\right)\right)$$

Where

P_s = Points scored for comparative price of tender or offer under consideration

P_t = Comparative price of tender of offer under consideration

P_{min} = Comparative price of lowest acceptable tender or offer

Note: the maximum available grant funding budget for the services outlined in this RFP has been determined using the ESCA guidelines fee scales. Bidders are advised to consider this in preparing financial proposals.

7.5. B-BBEE evaluation

B-BBEE score and preference points must be awarded to a tenderer for attaining the B-BBEE status level of contributor in accordance with the table below. In the case where the bid consists of a joint venture / consortium / association, B-BBEE status should be provided for each entity / member. The overall score must be calculated based on percentage (%) cost contribution of each member to the overall price offer.

Table 11: B-BBEE Status Scoring

B-BBEE Status Level of Tenderer	Number of Points
1	20
2	18
3	16
4	12
5	8
6	6
7	4
8	2
Non-compliant	0

A maximum of 20 points may be allocated in accordance with the table.

8. Awarding of Tenders

The Tenderer that is selected as the preferred Tenderer will be advised in writing via email with a view to agreeing and signing a contract for the performance of the scope of work (or part thereof) on mutually acceptable terms. A clarification meeting will be scheduled with the preferred Tenderer, GreenCape and Overstrand Municipality to discuss the terms of the contract, address any outstanding queries and to confirm understanding of the scope of work, before a Service Level Agreement is finalised between the preferred Tenderer and GreenCape.

If GreenCape cannot reach such agreement with the preferred tenderer within a reasonable time, GreenCape may terminate the negotiations and commence negotiations with the Tenderer with the next highest score who is willing to enter into such negotiations.

All Tenderers shall be notified in writing via email as to the outcome of their tender.

9. Disclaimer

This RFP document is neither an agreement nor an offer by GreenCape to prospective Tenderers or any other person, but rather an invitation to do business. The purpose of this RFP is to provide information to the interested parties that may be useful to them in the formulation of their tender pursuant to this RFP.

Answers provided by GreenCape in response to clarification requested in relation to this RFP shall not be construed as acceptance of an offer or imply the existence of a contract between the parties, nor shall GreenCape be held liable for anything expressed during the proposal process or negotiations not contained in the final contract.

The issueing of this RFP does not imply that GreenCape is bound to select a successful tenderer, and it reserves the right to accept / reject any or all tenders submitted in response to this RFP document at any stage, for any or no reason at all.

By submission of its tender, Tenderers shall be deemed to have satisfied themselves with and to have accepted all Tender Conditions, set out below, as well as the balance of the contents of this RFP.

GreenCape makes no representation, warranty, assurance, guarantee or endorsements to any Tenderer concerning the RFP, whether regarding its accuracy, reliability or completeness or otherwise and each prospective tenderer should conduct its own investigations and analyses and check the accuracy, reliability and completeness of the information provided in this RFP document. GreenCape shall have no liability towards the Tenderer or any other party in connection therewith.

10. Tender Conditions

10.1. Tender's acceptance of tender conditions

Any party that submits a tender in response to this RFP is deemed to have satisfied themselves with, and to have accepted all the following tender terms and conditions.

10.2. GreenCape's discretion

GreenCape may at its discretion:

(a) extend the closing date for the submission of tenders;

(b) amend this RFP, either on its own initiative, or in response to a request for clarification;

(c) verify any information contained in a tender;

(d) require a Tenderer to provide documentary proof of any statement made in a tender;

(e) require a Tenderer to provide further information to clarify any aspect of a tender;

(f) award the contract as a whole or in part to one or more parties;

(g) cancel or withdraw this RFP as a whole or in part.

(h) require further documents or information / conduct a further due diligence from / on any Tenderer.

10.3. Validity of tender

Each tender shall be valid for a minimum period of 120 days calculated from the closing date.

10.4. Disqualification

GreenCape may disqualify a tender on the basis that:

(a) the tender was submitted after the deadline stipulated in this RFP;

(b) the tenderer was involved in the preparation of this documentation and project scoping

(c) material information or documents required by this RFP was omitted (e.g. non-submission at SARS tax clearance certificate, Company registration certificates; B-BBEE certificates)

(d) the tender contained information material to the evaluation of the tender that was incorrect or misleading;

(e) the tenderer did not comply with any of the Tender Conditions in this RFP;

(f) an omission to disclose material information, a factual inaccuracy, and/or a misrepresentation of fact occurred, which may result in the disqualification of a tender, or cancellation of any subsequent contract.

(g) it has reasonable grounds for believing that the tenderer (which includes any member of a joint venture / association or consortium that submitted a tender) or any person acting on behalf of the tenderer, has engaged in corrupt, fraudulent, collusive or coercive practices, or has a conflict of interests in connection with the submission of the tender.

10.5. Sub-Contracting

A tenderer may subcontract the performance of certain parts of the scope of works subject to the following conditions:

A tenderer will require the written consent on GreenCape to subcontract any portion of the scope of works.

A tenderer will not be awarded points for B-BBEE status level if it is indicated in the tender documents that such a tenderer intends sub-contracting more than 25% of the value of the contract to any other enterprise that does not qualify for at least the points that such a tenderer qualifies for, unless the intended sub-contractor is an exempted micro enterprise that has the capability and ability to execute the sub-contract.

A tenderer awarded a contract may not sub-contract more than 25% of the value of the contract to any other enterprise that does not have an equal or higher B-BBEE status level than the tenderer concerned, unless the contract is sub-contracted to an exempted micro enterprise that has the capability and ability to execute the sub-contract.

A tenderer shall not assume that information and/or documents supplied to GreenCape, at any time prior to this request, are still available to GreenCape, and shall consequently not make any reference to such information or document in its response to this request / its Proposal, unless the information document in question is included as part of the tender in response to this RFP.

Certified copies of any affiliations, memberships and/or accreditations of any proposed sub-contractors that support the tenderer's submission must be included in the tender.

10.6. Joint ventures / Consortia / Associations

In case of tender from a joint venture / consortium / association, the following must be submitted together with the tender:

(a) Agreement between the members including split of work signed by both/all parties;

(b) The original or certified copy of the B-BBEE certificate of each of the joint venture/consortium/association entities/members;

(c) The Tax Clearance Certificate of each member;

(d) Certified copies of ownership / shareholder certificates; or certified copy of each party's shareholders register, indicating the ultimate owners in control of the entities and

(e) Certified copy of Company registration certificates that reflect Company Name, Registration number, date of registration and active Directors or Members, if incorporated.

10.7. Corrupt, Fraudulent, and Coercive Practices

GreenCape requires its staff, tenderers, manufacturers, suppliers or distributors, to observe the highest standard of ethics during the procurement and execution of all contracts.

GreenCape shall reject any tender put forward by Tenderers in response to this RFP, or where applicable, terminate a contract entered into with a successful Tenderer, if it is determined that they have engaged in corrupt, fraudulent, collusive or coercive practices.

GreenCape defines for purposes of this paragraph the terms set forth below as follows:

- Corrupt practice means the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence the action of GreenCape (or any of its employees, management, directors or board) in the procurement process or in contract execution, and includes attempts at any of the aforementioned actions;
- Fraudulent practice is any act or omission, including a misrepresentation, that intentionally or negligently misleads, or attempts to mislead, GreenCape or any other person in the procurement process or the execution of a contract, to obtain a financial gain or other benefit or to avoid an obligation or risk;
- Collusive practice is an undisclosed arrangement between two or more tenderers designed to artificially alter or interfere with the results of the tender procedure or in order to obtain a financial gain or other benefit;
- Coercive practice is impairing or harming, or threatening to impair or harm, directly or indirectly, any participant in the tender process to influence improperly its activities in a procurement process, or affect the execution of a contract.

10.8. Conflict of Interest

All tenderers found to have conflicting interests may be disqualified to participate in the procurement process. A tenderer may be considered to have conflicting interest under any of the circumstances set forth below if the tenderer:

- has controlling shareholders in common with another Tenderer;
- receives or has received any direct or indirect subsidy from another Tenderer;
- has the same representative as that of another Tenderer for purposes of this bid;
- has a relationship, directly or through third parties, that puts them in a position to have access to information about or influence on the Bid of another or influence the decisions of GreenCape regarding this bidding process;

- are government or municipal officials or has any close or familial relationship with the beneficiary municipality
- submits more than one bid in this bidding process;
- participated as a consultant / PSP in the preparation of the design or technical specifications of this RFP or any other preparatory work for purposes of this procurement.

This list shall not be interpreted as exhaustive, and GreenCape reserves the right to disqualify any Tenderer which may otherwise have a conflict of interest, or condone any conflict and award the tender none the less.

The Tenderer (and/or each member of a joint venture/consortium/association tendering) must complete and submit the Declaration on Conflict of Interests attached hereto as Annexure C and submit it with their Proposal.

10.9. Personal Information & Privacy

The Tenderer agrees that GreenCape may process, store, copy or use any Personal Information disclosed to GreenCape pursuant to this tender process to the extent that is necessary for it to select a winning bid and appoint relevant Tenderers in terms of a substantive agreement.

If the Tenderer has access to, stores (including in digital form), or communicates (including any digital communication) Personal Information relating to any person relating to this tender process, it will –

- treat the Personal Information as strictly confidential;
- not disclose the Personal Information to any third party, unless such disclosure is authorised by GreenCape in writing;
- ensure that any person that has lawful access to the Personal Information has signed a legally binding confidentiality undertaking document for non-disclosure;
- take appropriate, technical and organisational measures to ensure the integrity of the Personal Information and to ensure that it is secured and protected against unauthorised or unlawful Processing, accidental loss, destruction or damage, alteration, disclosure or access; and
- agrees to comply with all of its obligations under the Protection of Personal Information Act 4 of 2013.

10.10. Service Agreement subsequent to awarding of bid

- Note is to be taken by all bidders that, in line with funder requirements, certain terms will be applicable to the service level agreement offered to the winning bidder. These are in terms of Swiss and Danish law relating to Bribery and Corruption, Child Labour, Prevention of Sexual Exploitation, Abuse, and Harassment, Anti-terrorism and restrictive measures, Data Protection, Confidentiality and Health and Safety.
- No contractual relationship shall exist between GreenCape and the successful bidder prior to the conclusion and signature of a formal service level agreement.
- The successful proposal submitted by the Tenderer will form part of the service level agreement and may not be amended at any time after acceptance unless agreed to in writing by GreenCape and the successful bidder.

- The appointed bidder will be expected to comply, amongst others, with the following:
  - any applicable health and safety rules and regulations, including, but not limited to, the provisions of the Occupational Health and Safety Act No. 85 of 1993;
  - registration and good standing with the Commissioner for Compensation for Occupational Injuries and Diseases and having the necessary employer's liability insurance in respect of its employees/agents in line with the provisions of the Compensation for Occupational Injuries and Diseases Act No. 130 of 1993, as amended; and
  - to have acceptable insurance policies in place in line with general industry standards, in respect of at least the usual risks of public liability and health and safety, as well as any other required to sufficiently cover its liabilities in respect of the services (if any) which policies it shall provide to GreenCape upon request
  - provisions of the grant agreement in terms of which subcontractor's/service providers must be appointed
  - the successful bidder may be required, in the performance of the contract, to achieve the Contract Skills Development Goal (CSDG) established in the Standard for Developing Skills through Infrastructure Contracts (published in GN 1779 of 31 March 2023), if applicable and is to be negotiated between the parties.

Annexure A: Tender Documents

RFP Submission Checklist

No.	Document	Attached
1	Tenderer Company Profile	
2	B-BBEE Rating Certificate	
3	SARS Tax Clearance Certificate and Tax Compliance Status (TCS) PIN	
4	Company Registration Certificate	
5	Letter of good standing from the Compensation Fund in South Africa (COIDA)	
6	Proof of Insurance	
7	Technical Proposal	
8	Financial Proposal	
9	Declaration on Conflict of Interests (Signed)	
10	Joint venture / association / consortium agreement, if applicable	

Annexure B: Declaration of Conflict of Interest

Any legal person/s having a relationship with persons employed by The GreenCape Sector Development Agency, the beneficiary municipality or any of the funders listed in this RFP may make an offer/s in terms of this invitation to bid. In view of the possible allegations of favouritism, should the resulting bid, or part thereof, be awarded to persons connected with or related to The GreenCape Sector Development Agency, the beneficiary municipality or any of the funders listed in this RFP, it is required that the bidder or his/her authorized representative declare his/her interest as required below.

1. Have you previously provided services/products to The GreenCape Sector Development Agency, the beneficiary municipality or any of the funders listed in this RFP?

   YES NO
   If yes, please furnish further particulars:

_____

_____

2. Do you have any relationship (family, friend or otherwise) with employees of The GreenCape Sector Development Agency, the beneficiary municipality or any of the funders listed in this RFP?

   YES NO
   If yes, please furnish further particulars:

_____

_____

3. Were you previously employed by the GreenCape Sector Development Agency, the beneficiary municipality or any of the funders listed in this RFP?

   YES NO
   If yes, please specify further details of previous employment:

_____

_____

4. Please provide details of any other positions that you currently hold that could be of relevance to assessing conflict of interest for purposes of this project (e.g. directorships, partnerships, trusteeships, shareholdings, etc.):

5. Please provide full details of directors / trustees / members / shareholders of the bidder:

Full Name	**Identity Number**	**State Employee Number (if applicable)**

I am aware that in the event of not accurately declaring any of the above, The GreenCape Sector Development Agency is entitled to either reject my bid or terminate any resulting agreement, and take any further action it deems necessary.

I hereby confirm that all the information provided above is true and correct.

SIGNATURE

DATE

FULL NAME

CAPACITY

Annexure C: Key Personnel Details

Tenderers shall complete the table below for the category in which a submission is made. The information must correspond with the information submitted in accordance with Table 6

Tenders must note the key personnel proposed herein form part of the proposal and if accepted by GreenCape, may not be changed for the duration of the appointment without written approval from the GreenCape.

No functionality points for Key Personnel will be allocated if the relevant schedule(s) below is not duly completed.

Key Personnel Role	Name	Qualification	Professional Registration	Years of Experience	# of Relevant Projects
Project Director					
Civils Engineer/Design Engineer					
Project Finance Specialist					
Legal and contracting specialist					

Annexure D: Personnel Experience

Curriculum Vitae (CV's) in the prescribed format and not exceeding three pages for each of the key personnel proposed in Table 6 must be submitted. The CV's must specifically include the qualifications, professional registration and experience of the relevant engineering discipline. Certified copies of ECSA registration certificates (where applicable) and ID documents must be attached to the CV's.

No functionality points for Key Personnel will be allocated if certified copies of ECSA registration certificates and ID documents are omitted or if CV's of key personnel are not provided in the prescribed format.

Personnel as proposed in the RFP must be used on the project by the successful bidder. If not available any more for whatever reason, alternative personnel with similar qualifications and experience must be submitted before commencement of contract to GreenCape for approval.

Curriculum Vitae Template for Key Personnel *(format as required)*

Full name: _____
Key Personnel Role (*to correspond with key personnel schedule*): _____
ID Number: _____
Professional Registration: _____
Year of Professional Registration: _____
Current Employer: _____
Position with current Employer: _____
Number of years with current Employer: _____

Employment history prior to current employer				
Name of Employer		Position Held	Year	
			From	To
1				
2				
3				
4				
5				

Relevant Experience[6]				
Project description		Project value	Year completed	Project role
1				
2				
3				
4				
5				
6				

[6] List only the 10 most recent relevant projects to the specific project role proposed for this RFP and ensure that the 3 projects that are relevant for the personnel evaluation are highlighted here, i.e. projects that are at the same scale, where the same project role was performed, and the scope of work was similar

Relevant Experience[6]				
Project description		Project value	Year completed	Project role
7				
8				
9				
10				

Annexure E: Project Experience

The tender offer shall provide details in the format below of the Tenderer's experience for projects similar to those described in this RFP completed during the period January 2019 to June 2025. Client reference letters should be provided for projects included in the tables below.

Experience: Water Reticulation									
Acceptable projects include: replacing and laying of water pipelines etc.									
No.	Project Name	Project Location	Project Description	Tenderer's Role	Employer/Client	Contact details of Employer/Client	Project Value[7]	Project Start	Project End

Experience: Sewer reticulation									
Acceptable projects include: replacing or laying of sewer reticulation pipelines etc.									
No.	Project Name	Project Location	Project Description	Tenderer's Role	Employer/Client	Contact details of Employer/Client	Project Value[8]	Project Start	Project End

[7] Project value should be exclusive of VAT and in ZAR
[8] Project value should be exclusive of VAT and in ZAR

Annexure F: Sustainability Offer Motivation

In order to assess the viability of projects previously contracted at discounted rates, complete the table below with details on those projects and then provide a motivation

Work performed at discounted rates below 10%: Water Reticulation										
Acceptable projects include: replacing or laying of bulk water supply pipelines etc.										
No.	Project Name	Project Location	Project Description	Tenderer's Role	Employer /Client	Contact details of Employer /Client	Project Value[9]	Project Start	Project End	Discount provided (%)

Work performed at discounted rates below 10%: Sewer Reticulation										
Acceptable projects include: replacing or laying of bulk water supply pipelines etc.										
No.	Project Name	Project Location	Project Description	Tenderer's Role	Employer /Client	Contact details of Employer /Client	Project Value[10]	Project Start	Project End	Discount provided (%)

Motivation in respect of sustainability where a Tenderer offers a more than 10% discount of the ECSA Guideline Professional Fees (Scope of Services and Tariff of Fees for Persons Registered in terms of the Engineering Professions Act, 46 of 2000) must be provided. The motivation paper should discuss at least the following:

- The measures taken to ensure sustainability.
- Resource allocation.
- Critical success factors.
- Risk management and controls.

[9] Project value should be exclusive of VAT and in ZAR

[10] Project value should be exclusive of VAT and in ZAR

Annexure G: Financial Proposal

Bidders must submit a full financial proposal indicating staff resource allocation (assigned personnel and expected effort) towards each Stage 1 to 4, as well as any other anticipated costs (travel budget, printing etc.).

Note: the maximum available grant funding budget for the services outlined in this RFP has been determined using the ESCA guidelines fee scales. Bidders are advised to consider this in preparing financial proposals.

The full financial proposal should be used to complete the pricing table below, and all costs should be included in the total cost for each stage of the scope of works.

Successful bidders will be expected to deliver Stage 3 and Stage 4 scope of works based on the % discount of the new total estimated project costs should this change based on the outcomes of Stage 2.

Scope of works	ECSA	Project A	Project B	Subtotal	% discount / premium on ECSA or specialist fees
Inception	Stage 1				
Concept & Viability with Preliminary Design	Stage 2				
Environmental baseline	Stage 2 assessments	N/A			
Geotechnical	Stage 2 assessments	N/A			
Land surveys	Stage 2 assessments				
Design Development with Detailed Design	Stage 3				
Documentation and Procurement	Stage 4				
Total					